

24STLC03866 24STLC03866

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-08-03

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Case Number: 24STLC03866 Hearing Date: August 3, 2026 Dept: 26

TENTATIVE

RULING:

Plaintiff The Hartford

Underwriters Insurance Company's Motion for Order to Correct Clerical Error in Judgment and Amend Judgment Nunc Pro Tunc is continued to 09/14/2026 at 10:00 am in Department 26 at the Spring Street Courthouse. By 08/17/2026, Plaintiff is to file proof of service of the Motion and Notice of New Hearing Date in accordance with the statutory requirements. If Plaintiff files such proof of service in conformance with this order, the Motion will be granted and the judgment corrected on the date set for the continued hearing.

Analysis:

On May 29, 2024, Plaintiff The Hartford

Underwriters Insurance Company filed the instant action against Defendant AW Collision of Monrovia, a California Corporation ("Defendant"). The Court entered default judgment on December 17, 2024. However, the default judgment does not include the parties' names at paragraph 5 of the Judicial Council form JUD-100. (Judgment, 12/17/24, ¶5.)

On April 29, 2026, Plaintiff filed the

instant Motion for Order to Correct Clerical Error in Judgment and Amend Judgment Nunc Pro Tunc. The Motion was served on Defendant by electronic mail on the same day. No opposition has been filed to date.

Discussion

Initially, the Court addresses the fact that Plaintiff served the Motion on Defendant by electronic mail. (Motion, pp. 5-7.) Not only does the proof of service fail to indicate the electronic service address to which the Motion was sent, but also, unrepresented parties such as Defendant must affirmatively consent to electronic service. (Cal. Rules of Court, rule 2.251(c)(3)(B).) Service of the Motion upon Defendant by electronic mail, therefore, does not meet the statutory requirements for notice. Failure to give notice of the papers and hearing date is a violation of due process and of the statutory notice requirements. (Code Civ. Proc., § 1005; Jones v. Otero (1984) 156 Cal.App.3d 754, 757.)

On the merits, Plaintiff moves pursuant to Code of Civil Procedure section 473, subdivision (d) to amend the judgment entered on December 17, 2024 by adding the parties' names at paragraph 5. The statute provides that "[t]he court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed" (Code Civ. Proc., § 473, subd. (d).) The failure to include the parties' names at paragraph 5 is a clear clerical error that may be corrected under the moving statute. If Plaintiff files a proof of service that demonstrates service of the Motion papers and notice of new hearing date on Defendant in accordance with the statutory requirements, the judgment will be corrected on the date set for the continued hearing, as requested.

Conclusion

Plaintiff The Hartford

Underwriters Insurance Company's Motion for Order to Correct Clerical Error in Judgment and Amend Judgment Nunc Pro Tunc is continued to 09/14/2026 at 10:00 am in Department 26 at the Spring Street Courthouse. By 08/17/2026, Plaintiff is to file proof of service of the Motion and Notice of New Hearing Date in accordance with the statutory requirements. If Plaintiff files such proof of service in conformance with this order, the Motion will be granted and the judgment corrected on the date set for the continued hearing.

Moving

party to give notice.